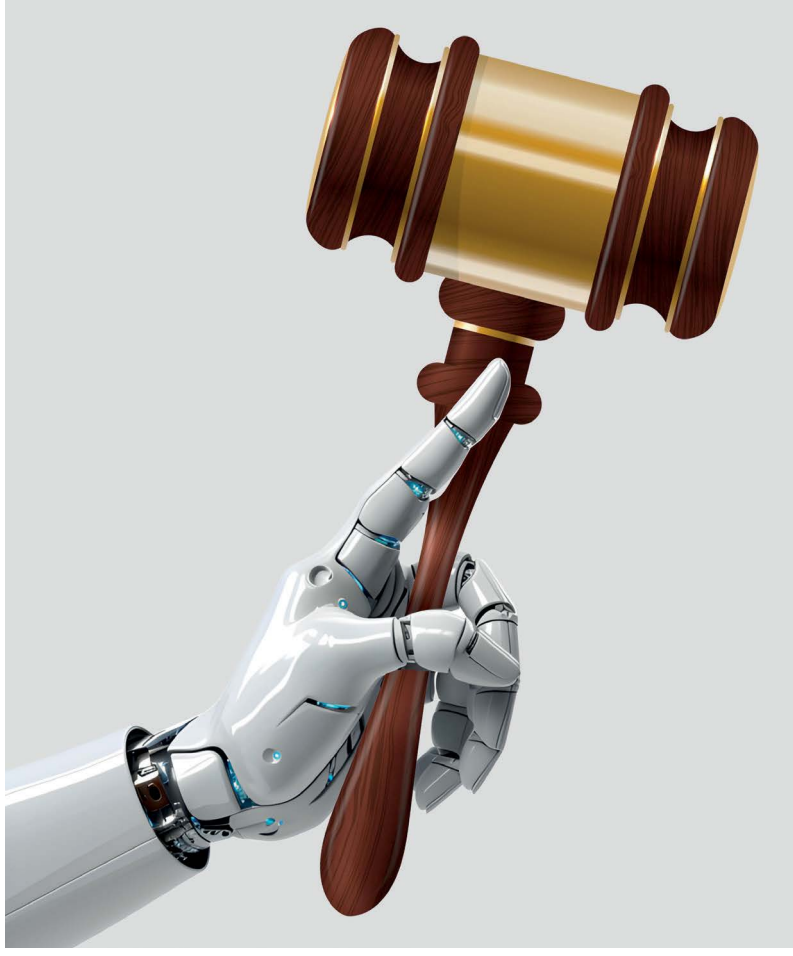


under the IPC or the new BNS would apply to deepfakes or manipulated imagery used to threaten victims. Social engineering impacting democratic processes has been of grave concern and this has, to some extent, been addressed through electoral laws such as the Codes of Conduct issued under the Representation of Peoples Act, 1951.

Civil and tortious liability may be decided based on laws and precedents, including of the liability of developers and manufacturers through the constructs of principal and agent, as one illustration. User liability is highlighted in the US cases cited above. The literal human at the wheel is held responsible by US courts for self-driven car accidents, which may have been due to AI error, as the courts held that the driver was ultimately liable to ensure safety and could not divest his responsibility to a machine. Similarly, whilst upholding the use of COMPAS, the courts still held human intervention to be mandatory. These and other evolving areas of AI jurisprudence lend guidance to Indian courts in deciding cases that are bound to proliferate.

APPLYING AI WITHOUT VIOLATING **NATIONAL INTERESTS, INDIVIDUAL RIGHTS OR THAT OF BUSINESSES** IS ESSENTIAL AND THE LAW WOULD PLAY A KEY ROLE IN ENABLING THE SAME

Intellectual Property Rights claims are another facet of law impacted by AI. A large number of AI-impacted cases in the US are indicative for evolving AI jurisprudence in India. In *Thaler v. Perlmutter* (2023), the US District Court upheld the copyright registry's refusal to register an AI-generated painting. Whilst so, Dr Thaler's filing naming the AI system DABUS as inventor was upheld by an Australian court. This case will certainly impact other copyright claims too, including for source codes. On the issue of AI-generated source codes, the class action suit of *John Doe et al v. GitHub Inc et al* before a California court, which contests the right of Microsoft, GitHub and OpenAI to use open source codes to train AI models and claims that the codes generated through AI, therefore, violate the terms of the licensing, is likely to impact the very process of AI-generated content. Personality rights and the need for protecting them, including against violation through deepfakes, is pending a decision even before Indian courts with the interim orders favouring the celebrity plaintiffs.

AI to combat crimes was implemented through the Supreme Court's order in *Re: Prajwala Letter dated 18.2.2015*. In *Violent Videos and Recommendations* in 2017, the court adapted the consensus proposal for evolving AI-enabled tools to identify violative content relating to women and children, which could enable blocking of such content before dissemination to the public. Technology evolved as on date has made this a substantial reality.

Economic gains from harnessing technology and advances therein are the primary focus of all strategy documents globally, including for India. The NITI Aayog's 2018 paper titled 'National Strategy for Artificial Intelligence' and its follow-up in 2021 and 2022, and the Ministry of Electronics and Information Technology's four-part report on AI, lent direction for AI adaptation with the tagline #AIforAll. That AI is here to stay and would benefit society through various use-cases is undeniable. Applying AI responsibly is the need much emphasised over time and doing so without violating or compromising national interests, individual rights or that of businesses is essential. The law needs to play a key role in enabling the same. India has to find its foothold in not only evolving laws that meet the security and protective requirements but also in enabling businesses such that they may further grow and flourish through certainty and trust. ■